



Appeal Decision

Site visit made on 18 August 2026

by Megan Thomas K.C. Barrister-at-Law

an Inspector appointed by the Secretary of State

Decision date: 17 September 2026

Appeal Ref: 6012221

10 Broomfield Ride, Oxshott, Leatherhead, Surrey KT22 0LW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr and Mrs Flett against the decision of Elmbridge Borough Council.
 - The application ref. is 2026/0334.
 - The development proposed is a single storey side extension with rooms in the roof space incorporating dormer window and garage below, first floor/roof rear extension with balustrading, conversion of existing garage into living space and alterations to fenestration following partial demolition of existing house.
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Decision

1. The appeal is allowed and planning permission is granted for a single storey side extension with rooms in the roof space incorporating dormer window and garage below, first floor/roof rear extension with balustrading, conversion of existing garage into living space and alterations to fenestration following partial demolition of existing house in accordance with the terms of planning application ref.2026/0334, subject to the following conditions:
 - 1) The development hereby permitted shall begin not later than three years from the date of this decision.
 - 2) The development hereby permitted shall be carried out in strict accordance with the following plans: Proposed Site Plan 002, Existing Elevations 013, Existing Site Plan 001, Existing Ground Floor Plan 009, Existing Second Floor Plan 011, Existing First Floor Plan 010, Existing Roof Plan 012, Proposed CGI Views 008, Proposed Elevations 007, Proposed First Floor Plan 004, Proposed Ground Floor Plan 003, Proposed Second Floor Plan 005 and Proposed Roof Plan 006.
 - 3) Prior to any demolition works required to carry out the first floor development hereby permitted, notwithstanding any materials details shown on the approved plans or set out in the Planning Application Form or accompanying documentation, details and samples of the materials to be used in the construction of the external surfaces of the first floor development hereby permitted shall have been submitted to and approved in writing by the local planning authority. Similarly, details and samples of the proposed terrace balustrade(s) shall be supplied and approved in writing. Development shall be carried out in accordance with the approved details /samples.

Procedural Matters

2. Since the Council decided the planning application, the Government has published a revised National Planning Policy Framework 'NPPF' (on 17th August 2026). The main parties were invited to comment on the relevance to the appeal of the 2026 revised NPPF and where comments have been made I have taken them into account in coming to my decision.
3. In the box heading above, I have used the description of development set out on the appellant's appeal form as it is fuller and more accurate than the description given on the planning application form.

Main Issue

4. The main issue in the appeal is the effect of the proposed development on the character and appearance of the host dwelling and area.

Reasons

5. The appeal site comprises a detached part single part two storey house with additional roofspace accommodation, front forecourt area and a rear garden. It is located on the western side of Broomfield Ride which is within the Crown Estate in Oxshott. It is a gated residential area characterised by low density, very large homes, typically detached sitting on spacious plots.
6. No.8 Broomfield Ride is to the north west of the appeal site, and no.12 is to its south east. All three are large detached dwellings in their own grounds. The appeal dwelling is within the built-up settlement of Oxshott.
7. The appeal site has electronic gates through which the front elevation of the dwelling can be seen. There is a single storey pool house at the rear accommodating an indoor swimming pool, and there is a part first floor rear terrace with metal balustrading. The rear garden and side boundaries in particular are well-vegetated and views to the rear first floor terrace from outside the site are screened mostly by vegetation.
8. The proposal includes a single-storey side extension with rooms in the roof space incorporating a dormer window and garage below, following the partial demolition of the flat roof single storey side/rear extension (towards the side of no.8). It also includes a first floor/roof rear extension (with dormer style additions) following removal of the existing terrace and dormers including part of the dwelling. There would be some balustrading to the rear, replacement of some of the ground floor rear doors and conversion of the existing garage into living space.
9. The bulk of the proposed development would take place on the north-western side (no.8 side) of the dwelling using an area of parking in the corner of the property which is bounded by the end of the pool house and the north western flank of the main dwelling which has three garage doors. No.8 is generally not visible from this area. The boundary treatment includes mature vegetation. The proposed north western flank of the new side extension would protrude further towards the boundary with no.8 than the northwestern flank of the pool house, but by a small amount and would leave an acceptable gap to the common boundary. No.8 is not built up to the common boundary with the appeal site and overall the resulting development would not lead to nos 8 and 10 being unduly close to one another so as to disrupt the pattern or grain of development in the Crown Estate. The gaps between dwellings in the area generally would continue to be respected by the proposed development.

10. From the front, there would be new ground floor garages, a new door and accommodation in the roofspace above signalled by a new round-topped dormer window and the extension of the ridgeline of the lower of the two main roof ridges.
11. The dwelling is visually well-balanced from the front with the central gable flanked by 'wings' of similar widths and on the north-western side of the plot the single storey pool house is recessed. Whilst the proposal would bring the massing wider and further forward than the pool house eastern wall, the new single storey side element would be reasonably well set back from the building line of the main dwelling and would have two garage doors signalling ancillary accommodation. As a result, it would not unduly interfere with the balance of the main dwelling and would be subservient in nature. From the front the new roof, which would mainly house the rooms behind, would be recessive and there would be a hipped roof over the new garages which would leave a visual gap at roof level thereby reducing the massing nearest the common boundary with no.8 and allowing the extension to sit comfortably within the appeal site plot.
12. From the rear, the proposed side extension element would form and connect with the wider first floor/roof level rear extension. It would not increase the height of the latter, and whilst it would be wider, it would be viewed from ground level in the context of the existing single storey pool house and, as I was able to confirm on my site visit, for a ground floor observer, its full width would be partially screened and its impact softened given its first floor corner position.
13. Turning to the proposed design of the new first floor rooms and elongated first floor extension, whilst there are some dwellings of contemporary design on the Crown Estate, it is important that the host dwelling is able to accommodate a partially contemporary design solution without unduly harming the more traditional build character of the appeal dwelling. I have come to the view that with the use of more sympathetic external materials, the bolder and more angular proposal would not harm the more traditional character and appearance of the host dwelling. In particular, the style would suit the replacement ground floor rear doors and would not simply be a pastiche of the main block and south wing of the building.
14. Turning to the proposed materials of the first floor extension, the proposed dark stained timber cladding would not be sympathetic to the existing brick and render and the zinc roof would be too harsh and cold. The proposed white render infill panels would be unduly stark and the glass privacy screens/balustrading too intrusive owing to their height. These matters are capable of being overcome by a suitably-worded condition. Therefore, I have attached a planning condition to require that the local planning authority approve the external surface materials (and balustrade details), in order to avoid harm to the character and appearance of the host dwelling.
15. With the caveat above, I have concluded that the host dwelling would not have its character or appearance unduly harmed by the proposed development, and in coming to this view, I have considered the limited existing streetscene views and also private views of the dwelling whether those are experienced by the occupants themselves or by neighbours. It remains important in the interests of good planning that proposed development does not unduly detract from the appearance or character of a host building even if the building would normally only be viewed from private viewpoints including on-site views. This is reflected in NPPF policy DP3(2)(g) which articulates the important principle of creating visually attractive, distinctive and characterful development, which means ensuring additions to host dwellings do not unduly harm their character or appearance *per se*.
16. I have come to the view that the proposals would not be incongruous, dominating, disproportionate or overly bulky, subject to more appropriate materials being used at the rear first floor extension than first put forward. The plot ratio of the enlarged dwelling would be

comparable to that of no.8 to the north even though it may be modestly outside the range expected in the Elmbridge Design Code (2024). The Floor Area Ratios design principle in the Code does not apply to householder development.

17. The proposal creates additional floorspace within an existing plot within a settlement. It falls within the terms of NPPF L2(1)(d) including (i) (ii) & (iii) of (d). In particular in relation to L2(1)(d)(i) the proposal would be consistent with the overall street scene. I have given substantial weight to the benefits of making effective use of land, which would be achieved by this proposal. The proposal would meet the requirements of DP3(1) relating to design, with the addition of an external materials condition (condition 3 above). My view is that DP3(5) does not apply in this case.
18. In NPPF DP3 “Key principles for well-designed places”, DP3(3) indicates that substantial weight should be given to compliance with relevant development plan policies when assessing the design quality of proposals. As I have come to the conclusion that policy CS17 of the Elmbridge Core Strategy (adopted 2011) and policy DM2 of the Elmbridge Development Management Plan (adopted 2015) are met, I have accorded those compliances with substantial weight in the decision-making process. Following S4 “Principle of development within settlements”, the proposed development should be approved because the benefits of doing so would not be substantially outweighed by any adverse effects when assessed against the national decision-making policies in the NPPF.
19. I conclude that the proposed development would not harm the character or appearance of the host dwelling or the area and would accord with policy CS17 of the Elmbridge Core Strategy (adopted 2011) and policy DM2 of the Elmbridge Development Management Plan (adopted 2015).

Other Matters

20. I have noted that the appeal site is in a more elevated position than no.8 Broomfield Ride but this does not give rise to an unduly oppressive impact caused by the development or a loss of privacy for no.8’s occupants given the separation distances involved and mature vegetation present. For the same reasons I do not consider that the proposals would result in unacceptable noise disturbance for any neighbours.

Conditions

21. I have considered the imposition of conditions in the light of advice in NPPG. For the avoidance of doubt, I have included a condition specifying which plans are approved plans and required development to be in accordance with those plans. For the reasons given above, I have included a condition which requires that external materials of the first floor development (and details of the balustrades) need to be submitted to and approved in writing by the local planning authority before demolition at first floor level takes place.

Conclusion

22. Having considered all representations made, for the reasons given above the appeal is allowed and planning permission is granted with conditions.

Megan Thomas K.C. **Inspector**